

		drivers licenses." Petitioner requests that the court "seal or redact the sensitive documents." While the court agrees that the foregoing material could be sealed, Petitioner did not specifically identify any document or portions of documents that she wishes to be sealed, nor did Petitioner provide redacted copies of such documents for the public record. Petitioner has not complied with California Rules of Court, rules 2.550-2.551, which rules set forth the procedures for sealing of public court records. There are other procedural defects. The motion fails to comply with Code of Civil Procedure section 1010 and California Rules of Court, rule 3.1110(a) in that it fails to give notice of the nature of the order sought and the grounds for the issuance of the order. It further fails to comply with California Rules of Court, rules 3.1112, 3.1113 and 3.1115. The court further notes that there is no proof of service accompanying this motion. Based on the foregoing, the court's tentative ruling is to deny the motion without prejudice to Petitioner's right to seek the relief requested in a procedurally appropriate manner. [Motion Type]
01510686	Pfrang - Elder Abuse	TENTATIVE RULING Case: Pfrang - Elder Abuse 01510686 Calendar No: 7 Date: 09/23/26 MOTION FOR WRIT OF POSSESSION (ROA 31) Petitioner Mayumi Pfrang ("Petitioner") moves for a writ of possession to recover a 2005 Toyota Corolla valued at approximately \$4,800.00 that is allegedly in the possession of Julie Renee Amroso. Code of Civil Procedure § 512.010 provides: "(a) Upon <u>the filing of the complaint or at any time thereafter</u>, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for

the writ with the court in which the action is brought.

(b) The application shall be executed under oath and shall include all of the following:

(1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.

(2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.

(3) A particular description of the property and a statement of its value.

(4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

(c) The requirements of subdivision (b) may be satisfied by one or more affidavits filed with the application."

(Emphasis added.)

Code of Civil Procedure sections 512.010 to 512.120 govern a **prejudgment** writ of possession when there is an underlying action to recover property (e.g., Claim and Delivery, Conversion, etc.) Here, there is no underlying action concerning the possession of the 2005 Toyota Corolla. The court denied the request for a restraining order on 11/12/25. The court made no orders and set no further hearing on Petitioner's request for an order to have the car turned over to Petitioner. Indeed, such issue is not appropriately handled in connection with a request for an elder abuse restraining order.

The motion for writ of possession is **DENIED as procedurally defective.**

		This order is without prejudice to Petitioner's right to seek the relief requested in an appropriate action.
		TENTATIVE RULING
		Case:
		Calendar No.:
		Date: